

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----,
ALESHA DUFFY o/b/o minor H.J.,

Plaintiff,

-against-

CITY OF NEW YORK; Police Officer CHARLES FRISCIA,
Tax#938503, individually and in his/her official capacities; and
NYPD Officers JOHN and JANE DOE 1 through 10,
individually and in their official capacities (the names John and
Jane Doe being fictitious, as the true names are presently
unknown),

Defendants.
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SUMMONS

Jury Trial Demanded

Plaintiff designates Kings
County as the place of trial.

The basis of venue is:
CPLR § 504(3)

To the above named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
April 11, 2018

Katherine E. Smith, Esq.
LAW OFFICE OF K.E. SMITH
233 Broadway, Ste. 1800
New York, New York 10279
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TO:

ZACHARY W. CARTER

Corporation Counsel of the City of New York

Attorney for Defendant THE CITY OF NEW YORK

100 Church Street

New York, New York 10007

Police Officer CHARLES FRISCIA, Tax #938503

Transit District 34

1243 Surf Ave.

Brooklyn, NY 11224

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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PLAINTIFF, Alesha Duffy o/b/o minor son H.J, by her attorney, LAW OFFICE OF
KATHERINE E. SMITH, complaining of the defendants, respectfully alleges as follows:

FACTS

1. PLAINTIFF, Alesha Duffy o/b/o minor son H.J, have been at all relevant times a resident of Kings County in the City and State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State

VERIFIED COMPLAINT

Jury Trial Demanded

Index No.

BASIS FOR VENUE:

CPLR § 504(3)

Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. At all times relevant defendant POLICE OFFICER CHARLES FRISCIA and NYPD Defendants John & Jane Doe 1 through 10 ("Doe Defendants") were police officers, detectives or supervisors employed by the NYPD. PLAINTIFF does not know the real names and shield / tax numbers of defendants John & Jane Doe 1 through 10.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

STATEMENT OF FACTS

8. On or about April 21, 2015, at or around at 8:30 PM, PLAINTIFF minor H.J. was lawfully within the vicinity of West & Street and Bay Parkway, Brooklyn, New York.

9. PLAINTIFF was a participant at the Marlborough Community Center, was returning from a trip with eight (8) other participants and two (2) adult supervisors.

10. Upon entering the MCC, Several unidentified New York City Police Officers including CHARLES FRISCIA and the DOE defendants followed PLAINTIFF and others into the community center and demanded they come outside.

11. Defendants falsely claimed that PLAINTIFF and several others from the youth program robbed a passenger on the train.

12. Despite the fact that officers knew that PLAINTIFF had not committed any crimes or offenses, they placed claimant into handcuffs and under arrest.

13. Defendants placed PLAINTIFF into handcuffs and under arrest.

14. PLAINTIFF was taken to the police precinct and even though PLAINTIFF was a minor, he was not permitted to speak with a parent.

15. At the precinct the officers, including the arresting officer, FRISCIA Tax #938503 falsely informed employees of the Kings County District Attorney's Office and Family Court (collectively "Prosecutors' Offices") that they had observed PLAINTIFF commit various crimes/offenses.

16. The DOE defendants did not observe PLAINTIFF violate any laws / ordinances.

17. The allegations made by Defendants to the Prosecutors' Offices were false, and the defendants knew them to be false at the time the defendants made the allegations.

18. The defendants then forwarded these false allegations to the Prosecutors' Offices in order to justify the unlawful arrest of PLAINTIFF and to persuade the Prosecutors' Offices to commence and/ or continue the criminal prosecution of PLAINTIFF.

19. The defendants knew and understood that the Prosecutors' Offices were relying on the truthfulness of defendant's claims and statements in order to evaluate whether to

commence a criminal prosecution against the PLAINTIFF. Defendants were aware that the Prosecutors' Offices assumed that all of the factual statements, claims and allegations that defendants relayed to the Prosecutors' Offices were truthful in all material respects.

20. From the precinct, PLAINTIFF was then transported to Spofford Juvenile Detention Center.

21. PLAINTIFF remained in custody at Spofford in excess of twenty-four (24) hours.

22. PLAINTIFF appeared in court as required, and on July 13, 2016, PLAINTIFF'S criminal case was dismissed in its entirety.

23. PLAINTIFF suffered damage as a result of defendants' actions. PLAINTIFF was deprived of liberty, suffered emotional distress, mental anguish, fear, pain, bodily injury, anxiety, embarrassment, humiliation, and reputational damage.

FIRST CLAIM
UNDER NEW YORK STATE AND FEDERAL LAW
UNLAWFUL STOP, SEARCH, AND SEIZURE

40. PLAINTIFF repeats and realleges each and every allegation as if fully set forth herein.

41. As a result of the aforesaid conduct by defendants, PLAINTIFF's person and possessions were illegally and improperly seized and searched without consent, a valid warrant, probable cause, privilege or consent, in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

SECOND CLAIM
UNDER N.Y. STATE and FEDERAL LAW
FALSE ARREST/IMPRISONMENT

22. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

23. Defendant police officers arrested PLAINTIFF in the absence of probable cause and without a valid warrant.

24. As a result of the aforesaid conduct by defendants, PLAINTIFF was subjected to an illegal, improper and false arrest by the defendants and caused to be falsely imprisoned, detained and confined. The aforesaid actions by the defendants constituted a deprivation of the plaintiff's rights.

25. As a result of the foregoing false imprisonment, PLAINTIFF's liberty was restricted for an extended period of time, PLAINTIFF was put in fear for PLAINTIFF's safety, was humiliated and subjected to handcuffing and other physical restraints.

26. PLAINTIFF was conscious of said confinement and did not consent to same.

27. The confinement of PLAINTIFF was without probable cause and was not otherwise privileged.

28. As a result of the aforementioned conduct, PLAINTIFF has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

THIRD CLAIM
UNDER N.Y. STATE AND FEDERAL LAW
MALICIOUS PROSECUTION

32. PLAINTIFF repeats and realleges each and every allegation as if fully set forth herein.

33. By their conduct, as described herein, defendants are liable to PLAINTIFF for having committed malicious prosecution under the laws of the State of New York.

34. Defendants maliciously commenced criminal proceeding against PLAINTIFF. Defendants falsely and without probable cause charged PLAINTIFF with violations of the laws of the State of New York.

35. The commencement and continuation of the criminal proceedings against PLAINTIFF was malicious and without probable cause.

36. All charges were terminated in PLAINTIFF's favor.

37. PLAINTIFF suffered post-arraignment deprivation of freedom: he was sent to Spofford where he remained for approximately twenty four (24) hours, without being able to contact his parent; he was required to attend many court appearances before the case was dismissed.

38. Defendants, their officers, agents, servants and employees were responsible for the malicious prosecution of PLAINTIFF. Defendant City of New York, as an employer of the individual defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

39. As a direct and proximate result of the misconduct and abuse of authority stated above, PLAINTIFF sustained the damages alleged herein.

FOURTH CLAIM
UNDER FEDERAL LAW
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL

40. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

41. Defendants created false evidence against PLAINTIFF.

42. Defendants forwarded false evidence and false information to prosecutors in the Kings County District Attorney office.

43. Defendants misled the prosecutors by creating false evidence against PLAINTIFF and thereafter providing false testimony throughout the criminal proceedings.

44. In creating false evidence against PLAINTIFF, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants violated PLAINTIFF's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

45. As a result of the foregoing, PLAINTIFF's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FIFTH CLAIM
UNDER N.Y. STATE LAW AND FEDERAL LAW
MALICIOUS ABUSE OF PROCESS

29. PLAINTIFF repeats and re-alleges each and every allegation as if fully set forth herein.

30. The individual defendants issued legal process to place PLAINTIFF under arrest.

31. The Municipal Defendants arrested PLAINTIFF in order to obtain collateral objectives outside the legitimate ends of the legal process.

32. The Municipal Defendants acted with intent to do harm to PLAINTIFF without excuse or justification.

33. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained, *inter alia*, loss of liberty, loss of earnings, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, in addition to the damages hereinbefore alleged.

SIXTH CLAIM
UNDER FEDERAL LAW
DEPRIVATION OF FEDERAL RIGHTS

34. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

35. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

36. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guarantee to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

37. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

38. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

39. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SEVENTH CLAIM
UNDER FEDERAL LAW
MUNICIPAL LIABILITY

40. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

41. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constitutes a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

42. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- iii. fabricating evidence in connection with their prosecution in order to cover up police misconduct; and,
- iv. fabricating evidence in connection with search warrants in order to effectuate otherwise illegal searches and seizures, and,
- v. fabricating evidence in connection with search warrants in order to cover up police misconduct.

43. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference

to the safety, well-being and constitutional rights of the plaintiff.

44. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiff as alleged herein.

45. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiff as alleged herein.

46. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the PLAINTIFF's constitutional rights.

47. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiff's constitutional rights.

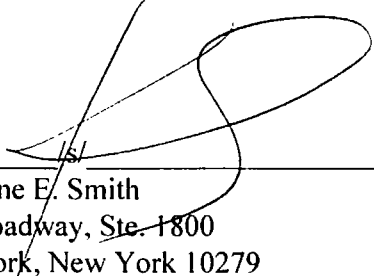
48. The acts complained of deprived the plaintiff of her right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon him; and
- D. To receive equal protection under the law.

WHEREFORE, PLAINTIFF respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

DATED: New York, New York
April 11, 2018



Katherine E. Smith
233 Broadway, Ste. 1800
New York, New York 10279
Tel/ Fax: 347-470-3707
ksmith@legalsmithny.com
Attorney for Plaintiff

ATTORNEY'S VERIFICATION

KATHERINE E. SMITH, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

That he is a member of THE LAW OFFICE OF KATHERINE E. SMITH the attorneys for Plaintiff ALESHA DUFFY o/b/o minor H.J. in the within entitled action.

That your deponent has read the foregoing **VERIFIED COMPLAINT** and knows the contents thereof, and that the same is true to her own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the PLAINTIFF is that the PLAINTIFF is not within the county wherein deponent maintains her office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
April 11, 2018

/S/
Katherine E. Smith

